



CHAPTER cxxv.

An Act to confirm certain Provisional Orders of the Local Government Board for Ireland relating to the Rural Districts of Rathdown (No. 1) and Rathdown (No. 2). A.D. 1904.
[22nd July 1904.]

WHEREAS the Local Government Board for Ireland have made the Provisional Orders set forth in the schedule hereto under the Public Health (Ireland) Acts 1878 to 1896 :

41. & 42 Vict. c. 52.
42 & 43 Vict. c. 57.
47 & 48 Vict. c. 77.
52 & 53 Vict. c. 84.
53 & 54 Vict. c. 59.
59 & 60 Vict. c. 54.

And whereas it is requisite that the said Orders should be confirmed by Parliament :

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

1. The Orders set out in the schedule hereto are hereby confirmed and all the provisions thereof shall have full validity and force. Orders in schedule confirmed.

2. This Act may be cited as the Local Government Board (Ireland) Provisional Orders Confirmation (No. 4) Act 1904. Short title.

A.D. 1904.

S C H E D U L E.

RURAL DISTRICT OF RATHDOWN (No. 1).

Rathdown.
(1.)

Provisional Order to enable the Council of the Rural District of Rathdown (No. 1) to put in force the Compulsory Clauses of the Lands Clauses Acts.

WHEREAS the council of the rural district of Rathdown (No. 1) (in this Order referred to as "the district council") require to purchase and take the lands and premises described in the schedule hereto for the purpose of providing a system of sewerage for the Rathdown Union Workhouse:

And whereas by an agreement entered into on the sixteenth of March one thousand nine hundred and four between the guardians of the poor of the Rathdown Union (in this Order referred to as "the guardians") of the one part and the district council of the other part it was agreed that the guardians would pay to the district council the costs and expenses incurred in respect of the application for this Order and also all sums which the district council might have to pay in relation to the acquisition of lands for the purpose of the said sewerage works and also all costs and expenses incurred in carrying out the said works and that the guardians would indemnify the district council from all costs charges and expenses as in the said agreement mentioned and that the district council would use their best endeavours to obtain this Order and to acquire the said lands and to have the said works carried out in accordance with the deposited plans and that the district council would acquire the said lands and all necessary works as trustees for the guardians:

41 & 42 Vict.
c. 52.

Now therefore We the Local Government Board for Ireland in pursuance of the powers given to us by section 203 of the Public Health (Ireland) Act 1878 and of all other powers enabling Us in that behalf do hereby order that from and after the date of the Act confirming this Order the following provisions shall have effect namely:—

59 & 60 Vict.
c. 54.

1. The district council shall be empowered to put in force with reference to the lands and premises described in the schedule hereto and for the purpose aforesaid the powers of the Lands Clauses Acts as amended by section 8 of the Public Health (Ireland) Act 1896 with respect to the purchase and taking of lands otherwise than by agreement or any of them.

2. The said agreement of the sixteenth March one thousand nine hundred and four is hereby confirmed and all the provisions thereof shall have full effect.

3. This Order may be cited as the Rathdown Union (Sewerage) Order 1904.

[4 EDW. 7.] *Local Government Board (Ireland) [Ch. cxxv.]*
Provisional Orders Confirmation (No. 4) Act, 1904.

S C H E D U L E.

A.D. 1904.

Rathdown.
(1.)

County of DUBLIN Parish of RATHMICHAEL.

Nos. on deposited Plan.	Description of Lands.	Owner or reputed Owner.	Occupier.
1	Part of the townland of Shank-hill containing 2a. Or. 12p.	Sir C. M. Domville - - -	Patrick Walsh.
2	Ditto containing 8p. - -	Ditto - - - - -	Ditto.

Given under our seal of office this twenty-second day of April one thousand nine hundred and four.

(L.S.)

H. A. ROBINSON.

RURAL DISTRICT OF RATHDOWN (No. 2).

Provisional Order to enable the Council of the Rural District of Rathdown, (No. 2) to put in force the Compulsory Clauses of the Lands Clauses Acts.

WHEREAS the council of the rural district of Rathdown (No. 2) (in this Order referred to as "the district council") require to purchase and take the lands described in the schedule hereto for the purpose of improving the sewerage of the town of Greystones in their district:

Now therefore We the Local Government Board for Ireland in pursuance of the powers given to Us by section 203 of the Public Health (Ireland) Act 1878 and of all other powers enabling Us in that behalf do hereby order that from and after the date of the Act confirming this Order the following provisions shall have effect namely :—

1. The district council shall be empowered to put in force with reference to the lands described in the schedule hereto and for the purpose aforesaid the powers of the Lands Clauses Acts as amended by section 8 of the Public Health (Ireland) Act 1896 with respect to the purchase and taking of lands otherwise than by agreement or any of them.

2. The costs and expenses of the district council and the Local Government Board for Ireland incurred in respect of the application for preparation making and confirmation of this Order shall be paid by the district council and the money required for that purpose shall be supplied by the county council of Wicklow in the manner provided by the Local Government (Ireland) Act 1898 as part of the expenses of the district council.

3. The district council shall not under the powers of this Order construct on the foreshore any works without the previous consent of the Board of

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Provisional Orders Confirmation (No. 4) Act, 1904.

A.D. 1904. Trade to be signified in writing under the hand of one of the secretaries or
 — assistant secretaries of that Board and then only according to such plan
Rathdown. and under such restrictions and regulations as that Board approve of such
 (2.) approval to be signified as last aforesaid and where any such work has been
 constructed the district council shall not at any time alter or extend the same
 without the like consent and approval If any such work is commenced or
 completed contrary to the provisions of this Article the Board of Trade may
 abate and remove the same and restore the site thereof to its former condi-
 tion at the cost and charge of the district council and the amount of such
 cost and charge shall be a debt due from the district council to the Crown
 and shall be recoverable as a Crown debt or under the Summary Jurisdiction
 Acts.

4. This Order may be cited as the Greystones Sewerage Order 1904.

SCHEDULE.

Parish of DELGANY in the County of WICKLOW.

Letter on deposited Plan.	Description of Lands.	Owner or reputed Owner.	Occupier.
A	Piece of land in the townland of Rathdown Lower containing 20p. or thereabouts.	Major Peter La Touche -	John Carr.
B	Ditto containing 1a. - -	Ditto - - -	Mrs. Bridget Gorman.

Given under our seal of office this thirtieth day of April one thousand
 nine hundred and four.

(L.S.)

H. A. ROBINSON.

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